

23PSCV04012 23PSCV04012

County: los-angeles

Division: Civil Law and Motion

Department: G

Hearing date: 2026-08-13

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Source SHA-256: 1f1114370b4f6229a4774f6419318e366c222ae0a03f3e712286e003b7f0aba2

Case Number: 23PSCV04012 Hearing Date: August 13, 2026 Dept: G

Plaintiff/Petitioner

Adriana Leticia Chavez Haro's Petition for Approval of Compromise of Claim or

Action or Disposition of Proceeds of Judgment for Plaintiff/Claimant Sergio

Jonathan Steve Rodriguez Chavez, a Minor

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Plaintiff/Petitioner

Adriana Leticia Chavez Haro's Petition for Approval of Compromise of Claim or

Action or Disposition of Proceeds of Judgment for Plaintiff/Claimant Sergio

Jonathan Steve Rodriguez Chavez, a Minor is GRANTED.

BACKGROUND

This

is a wrongful death action. On May 31,

2023, defendants Kaiser Foundation Hospitals and Southern California Permanente

Medical Group (collectively, Kaiser Permanente) allegedly admitted decedent

Sergio Rodriguez Jimenez at the Kaiser Permanente Ontario Medical Center

(Kaiser Ontario) for severe anxiety and suicidal ideation. On June 1, 2023, Kaiser Ontario allegedly

transferred Sergio Rodriguez Jimenez to nonparty Aurora Charter Oaks Behavioral

Health Center (Aurora) via an ambulance that was allegedly owned and operated

by defendants American Medical Response Ambulance Service, Inc. (AMR Ambulance

Service), American Medical Response of Inland Empire, Inc. (AMR Inland Empire),

American Medical Response of Southern California, Inc. (AMR Southern California), American Medical Response West, Inc. (AMR West), American Medical Response, Inc. (AMR), and Global Medical Response, Inc. (GMR). Sergio Rodriguez Jimenez allegedly died by suicide from self-inflicted wounds to his neck with a pair of scissors from the ambulance. Sergio Rodriguez Jimenez is survived by plaintiff Desiree Montserrat Rodriguez Chavez, plaintiff Jennifer Sofia Rodriguez Chavez, plaintiff/claimant Sergio Jonathan Steve Rodriguez Chavez, and plaintiff/petitioner Adriana Leticia Chavez Haro (collectively, the Family).

On December 29, 2023, the Family filed the Complaint, alleging causes of action for (1) wrongful death, (2) negligent infliction of emotional distress (by Jennifer Sofia Rodriguez Chavez), (3) negligent infliction of emotional distress (by Adriana Leticia Chavez Haro), and (4) survival.

On May 5, 2026, the parties informed the court that they settled the case. On July 6, 2026, Adriana Leticia Chavez Haro filed this petition for approval of minor's compromise, which is unopposed.

This case is set for an order to show cause re: dismissal (settlement) and a hearing on the petition on August 13, 2026.

ANALYSIS

Adriana Leticia Chavez Haro seeks the court's approval of a settlement reached between all parties. For the following reasons, the petition is GRANTED.

Legal
Standard

An enforceable settlement of a minor's or incompetent's claim can only be consummated with court approval. (Prob. Code, §§ 2504, 3500, 3600 et seq.; Code Civ. Proc., § 372.) For this purpose, a petition for approval must be presented to the court, and until it is granted, there is no final settlement. (*Scruton v. Korean Air*

Lines Co. (1995) 39 Cal.App.4th 1596, 1603–1606.) Any settlement agreement therefore is voidable by the minor's guardian ad litem.
(Id. at 1606.)

Probate

Code section 3600 et seq. governs how the settlement proceeds are to be paid. Pursuant to Probate Code section 3601, the order shall approve payment of reasonable expenses from the settlement as follows:

The court making the order or giving the judgment referred to in Section 3600, as a part thereof, shall make a further order authorizing and directing that such reasonable expenses (medical or otherwise and including reimbursement to a parent, guardian, or conservator), costs, and attorney's fees, as the court shall approve and allow therein, shall be paid from the money or other property to be paid or delivered for the benefit of the minor or incompetent person.
(Prob. Code, § 3601, subd. (a).)

In cases pursuant to Probate Code section 3601, "unless the court has approved the fee agreement in advance, the court must use a reasonable fee standard when approving and allowing the amount of attorney's fees payable from money or property paid or to be paid for the benefit of a minor or a person with a disability." (Cal. Rules of Court, rule 7.955(a)(1).) In doing so, "[t]he court must give consideration to the terms of any representation agreement made between the attorney and the representative of the minor or person with a disability and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor or person with a disability contemplated that the attorney's fee would be affected by later events." (Cal. Rules of Court, rule 7.955(a)(2).)

Discussion

Pursuant

to the settlement agreement reached between the parties, Kaiser Permanente, AMR, and AMR Southern California agree to pay a total of \$75,000.00 to Sergio Jonathan Steve Rodriguez Chavez. (See Pet., ¶ 10.) The petition does not request

that any of the settlement funds for Sergio Jonathan Steve Rodriguez Chavez be used for medical expenses, attorney's fees, or other expenses. (See Pet., ¶¶ 12–16.)

“In determining whether to grant a guardian ad litem's petition to approve a settlement of the ward's claims, a court must determine whether it is reasonable and in the minor's best interest.”

(Chui v. Chui (2022) 75 Cal.App.5th 873, 899.) Generally, courts must consider the following factors: 1) the circumstances of the accident or other incident giving rise to the litigation, particularly the facts bearing on the payor's potential liability and the minor's damages; 2) the amount of the proposed settlement; 3) how the settlement will be paid (e.g. in a lump sum or via an annuity); 4) the nature of the injury and the minor's current medical status and prognosis; and 5) the amount of attorneys' fees and other transaction costs being requested. (See, e.g., Kostakos v. Holewinski (Dec. 6, 2019, 37-2018-00029286-CU-PA-CTL) [nonpub. opn.], applying Cal. Rules of Court, rule 7.950.)

Here, the entire \$75,000.00 for Sergio Jonathan Steve Rodriguez Chavez will be deposited in insured accounts in a financial institution in this state, subject to withdrawal only on authorization of the court. (See Pet., ¶ 18b(2); see also Pet., Attach. 18b(2).) Upon review, the court finds the amount awarded to Sergio Jonathan Steve Rodriguez Chavez to be reasonable and finds the disposition of the funds is proper.

Accordingly, the petition to confirm minor's compromise is GRANTED.

CONCLUSION

For these reasons, the petition for approval of minor's compromise is GRANTED.